

VENDOR AGREEMENT

Illustrative Draft for Legal Portfolio Purposes

Effective Date: 24 September 2026

This Vendor Agreement ("**Agreement**") is entered into on **24 September 2026** ("**Effective Date**").

BETWEEN

MEDINOVA TECHNOLOGIES PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, having its registered office at Bengaluru, Karnataka, India, hereinafter referred to as the "**Company**" or "**Buyer**";

AND

TECHSOURCE OFFICE SOLUTIONS PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, having its registered office at Hyderabad, Telangana, India, hereinafter referred to as the "**Vendor**".

The Company and Vendor are individually referred to as a "**Party**" and collectively as the "**Parties**".

1. PURPOSE AND BACKGROUND

The Company operates technology platforms and business operations requiring reliable procurement of IT hardware, networking equipment, accessories and related technical support.

The Vendor represents that it has the necessary experience, personnel, resources and capability to supply such products and related services.

The Company therefore wishes to purchase the Products and Services described in applicable Purchase Orders from the Vendor, subject to the terms of this Agreement.

2. DEFINITIONS

2.1 "Products"

Means the hardware, equipment, accessories, software licences, consumables and other products specified in a Purchase Order.

2.2 "Services"

Means installation, configuration, maintenance, technical support and other services expressly specified in a Purchase Order.

2.3 "Purchase Order"

Means a written purchase order issued by the Company identifying the Products or Services, quantities, prices, delivery requirements and other applicable commercial terms.

2.4 "Specifications"

Means the technical, functional and quality requirements applicable to the Products or Services.

2.5 "Company Materials"

Means all materials, information, equipment, specifications, trademarks, data and documentation provided by the Company to the Vendor.

2.6 "Confidential Information"

Means non-public commercial, technical, financial, operational or business information disclosed by one Party to the other.

3. APPOINTMENT OF VENDOR

The Company appoints the Vendor as a supplier of the Products and Services identified in applicable Purchase Orders.

The Vendor accepts such appointment and agrees to supply the Products and Services in accordance with this Agreement and the applicable Purchase Orders.

Nothing in this Agreement guarantees any minimum purchase volume unless expressly stated in writing.

The relationship between the Parties is **non-exclusive**.

4. PURCHASE ORDERS

Individual purchases shall be documented through Purchase Orders.

Each Purchase Order shall, where applicable, specify:

- Product or Service description;
- quantity;
- unit price;
- total price;
- delivery location;
- delivery date;
- applicable Specifications;
- warranty requirements;
- installation requirements; and
- any project-specific terms.

The Vendor shall not commence material work or incur significant costs on behalf of the Company without an authorised Purchase Order.

5. ORDER ACCEPTANCE

The Vendor shall acknowledge each Purchase Order within **three (3) business days**.

If the Vendor identifies any inconsistency, pricing error, availability issue or material delivery concern, it shall promptly notify the Company.

Silence shall not constitute acceptance where the Vendor has not commenced performance.

6. PRODUCT AND SERVICE REQUIREMENTS

The Vendor shall ensure that all Products:

- a. conform to the applicable Specifications, descriptions, quantities, models, configurations and other requirements set out in the relevant Purchase Order;
- b. are new, unused and free from defects in materials, workmanship and design, unless the Purchase Order expressly permits refurbished or previously used Products;
- c. are of merchantable quality and fit for the purpose for which they are ordinarily supplied and, where a particular purpose has been communicated to and accepted by the Vendor, reasonably fit for such purpose;
- d. comply with all applicable laws, regulations, industry standards and mandatory technical or safety requirements applicable to the Products;
- e. are supplied with all manuals, licences, certificates, warranties, technical documentation, accessories and components reasonably necessary for their intended use;
- f. are genuine products and are not counterfeit, unauthorised, illegally sourced, materially altered or otherwise misrepresented;
- g. conform to the manufacturer's published specifications where such specifications form part of the applicable Purchase Order or have otherwise been agreed by the Parties;
- h. are packaged, labelled and transported in a manner reasonably sufficient to prevent damage, deterioration, contamination or loss during transit;
- i. have, where applicable, all required regulatory approvals, certifications and markings before delivery;
- j. do not knowingly infringe any third-party intellectual property rights; and
- k. have a remaining shelf life, warranty period or usable life consistent with the requirements specified in the applicable Purchase Order.

6.1 Services

The Vendor shall perform all Services:

- a. with reasonable skill, care and diligence;
- b. through personnel possessing appropriate qualifications, experience and training;
- c. in accordance with the applicable Purchase Order, Specifications and agreed timelines;
- d. in compliance with applicable health, safety, security and site-access requirements of the Company; and
- e. in a manner that does not materially interfere with the Company's business operations.

6.2 Changes to Specifications

The Vendor shall not materially alter the design, model, manufacturer, component, configuration or specifications of any Product without the Company's prior written approval.

Where a proposed change is necessary because of product discontinuation, supply-chain constraints or other circumstances outside the Vendor's reasonable control, the Vendor shall promptly notify the Company and provide details of the proposed alternative.

The Company may require the Vendor to provide a technically equivalent or superior alternative without additional cost where reasonably available.

6.3 Product Substitution

The Vendor shall not substitute a Product with another model, brand, component or specification without prior written approval from the Company.

Any approved substitute shall meet or exceed the agreed technical and functional requirements.

6.4 Inspection and Testing

The Company may inspect and test Products upon delivery or within a reasonable period thereafter.

Inspection, testing or acceptance by the Company shall not relieve the Vendor of its obligations or warranties under this Agreement.

Failure to identify a defect during initial inspection shall not constitute acceptance of a latent or concealed defect.

6.5 Non-Conforming Products

If any Product does not comply with the applicable Purchase Order, Specifications or requirements of this Agreement, the Company may, at its option:

- a.** reject the Product;
- b.** require the Vendor to repair or replace the Product at no additional cost;
- c.** require re-performance of affected Services;
- d.** require a reasonable price reduction where the Company elects to retain the Product; or
- e.** exercise any other contractual or legal remedy available to it.

The Vendor shall bear reasonable costs associated with the return, replacement, repair or re-delivery of rejected or defective Products where the non-conformity is attributable to the Vendor.

6.6 Urgent Defects

Where a Product defect creates a material risk to the Company's personnel, systems, operations, property or data, the Vendor shall provide reasonable priority assistance and take appropriate corrective measures without undue delay.

6.7 Documentation

Upon delivery, the Vendor shall provide documentation reasonably required for the Company's use, maintenance and verification of the Products, including, where applicable:

- invoices;
- delivery challans;
- serial numbers;
- warranty certificates;
- user manuals;
- installation documentation;
- compliance certificates;

- test reports;
- licences; and
- maintenance documentation.

6.8 Continuing Obligations

The Vendor's obligations under this Section shall survive delivery, inspection and acceptance of the Products to the extent necessary to give effect to applicable warranties, indemnities and remedies under this Agreement.

7. DELIVERY AND TITLE

The Vendor shall deliver the Products to the location and by the date specified in the applicable Purchase Order.

The Vendor shall promptly notify the Company of any anticipated delay.

Unless otherwise specified in a Purchase Order, title to Products shall pass to the Company upon delivery and acceptance, free from liens, charges and encumbrances.

Risk of loss or damage shall remain with the Vendor until delivery to the designated delivery location, except to the extent otherwise provided in the applicable Purchase Order or agreed Incoterms.

The Vendor shall not make partial deliveries without the Company's prior approval where such partial delivery would materially affect the Company's operations.

8. WARRANTY

Unless a longer warranty period is specified in the applicable Purchase Order, the Vendor warrants that Products shall remain free from material defects for **12 months from the date of acceptance**.

The Vendor shall, at its cost, repair or replace Products that fail to comply with the applicable warranty during the warranty period.

Warranty replacement shall not restart or extend the original warranty period except with respect to the repaired or replaced component where required by applicable law or expressly agreed by the Parties.

9. PRICING AND PAYMENT

Prices shall be as specified in the applicable Purchase Order.

Unless expressly stated otherwise, quoted prices shall include packaging, standard handling, delivery and other costs ordinarily necessary to supply the Products to the agreed delivery location.

The Vendor shall not increase prices after acceptance of a Purchase Order unless the Company expressly agrees in writing.

Invoices shall contain sufficient details to identify the relevant Purchase Order and Products or Services supplied.

Unless otherwise specified, undisputed invoices shall be payable within **30 days** from receipt and acceptance of the applicable invoice.

10. CONFIDENTIALITY

Each Party shall protect the other Party's Confidential Information and shall use such information only for purposes connected with this Agreement.

Neither Party shall disclose Confidential Information to a third party except where disclosure is authorised by the disclosing Party or required by law.

The confidentiality obligations shall survive termination of this Agreement for **three (3) years**, subject to applicable law.

11. DATA PROTECTION AND INFORMATION SECURITY

Where the Vendor receives or processes Company Data or personal data in connection with the Products or Services, the Vendor shall:

- process such data only for authorised purposes;
- implement reasonable technical and organisational security measures;
- restrict access to authorised personnel;
- prevent unauthorised disclosure or use; and
- promptly notify the Company of any material security incident affecting Company Data.

Where required, the Parties shall execute a separate data-processing agreement.

12. INTELLECTUAL PROPERTY

Each Party shall retain ownership of intellectual property owned by it before entering into this Agreement.

The Vendor shall not acquire ownership of Company Materials merely by receiving or using them for purposes of performing this Agreement.

Any intellectual property expressly developed for and paid for by the Company shall be dealt with in accordance with the applicable Purchase Order or separate written agreement.

The Vendor shall not use the Company's trademarks, logos or proprietary materials for marketing or any other purpose without prior written approval.

13. INDEMNIFICATION

Subject to the limitations of this Agreement, the Vendor shall indemnify and hold harmless the Company from third-party claims, losses and reasonable costs arising from:

- a. bodily injury, death or property damage caused by the Vendor's negligence or wilful misconduct;

- b. infringement of third-party intellectual property rights by the Products or Services, subject to applicable exclusions;
- c. breach of applicable law by the Vendor in connection with the Products or Services; or
- d. fraud or wilful misconduct by the Vendor or its personnel.

The Company shall promptly notify the Vendor of any indemnifiable claim and provide reasonable cooperation in its defence.

14. LIMITATION OF LIABILITY

Except for liabilities that cannot lawfully be limited, neither Party shall be liable for indirect or consequential damages solely to the extent such exclusion is permitted by applicable law.

The aggregate liability of either Party arising from an individual Purchase Order shall not exceed the total amount payable under that Purchase Order, except for liabilities arising from fraud, wilful misconduct, confidentiality breaches, intellectual property infringement or other liabilities that cannot lawfully be limited.

15. COMPLIANCE WITH LAW

The Vendor shall comply with all applicable laws and regulations relevant to its performance under this Agreement, including applicable:

- labour laws;
- tax laws;
- anti-bribery and anti-corruption requirements;
- health and safety requirements;
- environmental requirements;
- import/export requirements; and
- data-protection requirements.

The Vendor shall not offer, promise or provide any improper payment or benefit to any employee or representative of the Company.

16. AUDIT AND RECORDS

The Vendor shall maintain reasonable records relating to Purchase Orders, invoices, delivery, warranties and compliance with material contractual obligations.

Where reasonably required, the Company may request relevant records for verification purposes, subject to reasonable notice and appropriate confidentiality protections.

17. INSURANCE

The Vendor shall maintain insurance appropriate to the nature and scale of its obligations, including, where applicable, commercial general liability, workers' compensation and professional or product liability coverage.

Upon reasonable request, the Vendor shall provide evidence of applicable insurance.

18. TERM AND TERMINATION

This Agreement shall remain effective for **two (2) years** from the Effective Date unless terminated earlier.

Either Party may terminate this Agreement for convenience upon **30 days' written notice**, unless an active Purchase Order expressly provides otherwise.

Either Party may terminate the Agreement for material breach if the breaching Party fails to cure such breach within **30 days** after receiving written notice.

The Company may terminate an affected Purchase Order where the Vendor repeatedly fails to meet agreed delivery, quality or warranty requirements.

19. EFFECT OF TERMINATION

Termination shall not affect rights or obligations accrued before the effective termination date.

The Vendor shall complete or wind down outstanding orders as reasonably directed by the Company, subject to payment for Products properly delivered and accepted.

Confidentiality, intellectual property, payment, warranty, indemnification, limitation of liability and other provisions intended by their nature to survive termination shall continue to apply.

20. FORCE MAJEURE

Neither Party shall be liable for delay caused by circumstances beyond its reasonable control, provided that the affected Party promptly notifies the other Party and takes reasonable steps to mitigate the impact.

Force majeure shall not excuse payment for Products or Services already properly delivered and accepted.

21. INDEPENDENT CONTRACTOR

The Vendor is an independent contractor.

Nothing in this Agreement creates an employment relationship, partnership, joint venture or agency relationship between the Parties.

22. ASSIGNMENT

Neither Party shall assign its rights or obligations under this Agreement without the prior written consent of the other Party, except to a successor in connection with a merger, restructuring or sale of substantially all relevant assets.

23. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by the laws of **India**.

Subject to the dispute-resolution provisions below, the competent courts at **Bengaluru, Karnataka** shall have jurisdiction over disputes arising from this Agreement.

24. DISPUTE RESOLUTION

The Parties shall first attempt to resolve disputes through good-faith discussions between authorised representatives.

If a dispute remains unresolved for **30 days**, either Party may refer the dispute to arbitration under the **Arbitration and Conciliation Act, 1996**.

Unless otherwise agreed:

- the seat of arbitration shall be Bengaluru, India;
- the proceedings shall be conducted in English; and
- the tribunal shall consist of one mutually appointed arbitrator.

Either Party may seek urgent interim relief from a competent court where appropriate.

25. NOTICES

Formal notices shall be provided in writing by recognised courier, registered post or email to the authorised contact details designated by each Party.

26. ENTIRE AGREEMENT

This Agreement together with applicable Purchase Orders constitutes the entire agreement between the Parties regarding its subject matter and supersedes prior discussions concerning the same subject matter.

In case of conflict, the following order of precedence shall apply unless expressly stated otherwise:

1. a written amendment signed by both Parties;
 2. this Vendor Agreement;
 3. the applicable Purchase Order; and
 4. other supporting documentation.
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27. AMENDMENTS

Any amendment to this Agreement must be made in writing and signed by authorised representatives of both Parties.

28. SEVERABILITY

If any provision is found to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

29. WAIVER

Failure or delay by either Party to exercise any contractual right shall not constitute a waiver of that right.

30. COUNTERPARTS AND ELECTRONIC EXECUTION

This Agreement may be executed in counterparts.

Electronic signatures and electronically exchanged copies may be used to the extent permitted by applicable law.

SIGNATURES

FOR MEDINOVA TECHNOLOGIES PRIVATE LIMITED

Name: _____

Designation: _____

Signature: _____

Date: _____

FOR TECHSOURCE OFFICE SOLUTIONS PRIVATE LIMITED

Name: _____

Designation: _____

Signature: _____

Date: _____
